

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Index No.: 160000-2024

Plaintiff,

VERIFIED ANSWER

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,

-----X

The defendants, ANTHONY F. FERRARA and METRO-NORTH COMMUTER RAILROAD, by the undersigned, answering the Complaint of the plaintiff(s) herein, allege(s):

AS AND FOR THE INTRODUCTION

1. Denies the allegation contained in the paragraph(s) of the Complaint therein designated "1".

AS AND FOR THE PARTIES

2. Denies having any knowledge or information thereof sufficient to form a belief as to the truth of each and every allegation contained in the paragraph(s) of the Complaint therein designated "2", "3", "17", "20", "21", "22", "23", "24", "25", "26", "27" and "28".

3. Denies each and every allegation contained in the paragraph(s) of the Complaint therein designated "4" except admits that MTA was and still is a public benefit corporation and existing under and by virtue of the laws of the State of New York.

4. Admits each and every allegation contained in the paragraphs of the complaint therein designated "5".

5. Denies each and every allegation contained in the paragraph(s) of the Complaint therein designated "18", "19", "29", "30", "31", "32", "33", "34", "35", "36", "37" and "38".

AS AND FOR JURISTITION/CONDITION PRECEDENT

6. Admits each and every allegation contained in the paragraphs of the complaint therein designated "39".

7. Denies each and every allegation contained in the paragraph(s) of the Complaint therein designated "40" and "41".

**AS AND FOR A FIRST
AFFIRMATIVE DEFENSE:**

8. That whatever injuries and/or damages were sustained by the plaintiff at the time and place alleged in the Complaint were caused in whole or in part as a result of the plaintiff's own comparative negligence. That if the plaintiff is entitled to any recovery herein, such recovery shall be diminished in the proportion, which said comparative negligence attributable to the plaintiff, bears to the entire comparative negligence concerning the subject occurrence.

**AS AND FOR A SECOND
AFFIRMATIVE DEFENSE:**

9. That whatever injuries and/or damages were sustained by the plaintiff at the time and place alleged in the Complaint were the result of the assumption of risk, either express or implied, by the plaintiff(s).

**AS AND FOR A THIRD
AFFIRMATIVE DEFENSE:**

10. That whatever injuries and damages plaintiff(s) may have sustained at the time and place alleged in the Complaint were caused and brought about by reason of the failure of the plaintiff(s) to have utilized available seatbelts. Consequently, the plaintiff is barred from recovering damages for any injuries, which were caused or brought about by reason of the plaintiff's failure to utilize available seatbelts.

**AS AND FOR A FOURTH
AFFIRMATIVE DEFENSE:**

11. Upon information and belief, any past or future costs or expenses incurred or to be incurred by the plaintiff for medical care, dental care, custodial care or rehabilitative services, loss of earnings or other economic loss, has been or will with reasonable certainty be replaced or indemnified in whole or in part from a collateral source as defined in Section 4545(c) of the Civil Practice Law and Rules and, therefore, any judgment awarded to the plaintiff in this action shall be reduced by the amount of any past or future cost or expense which has or will be replaced or indemnified in whole or in part from said collateral source.

**AS AND FOR A FIFTH
AFFIRMATIVE DEFENSE:**

12. That plaintiff's alleged injuries and damages were caused and brought about wholly or in part by plaintiff's failure to mitigate damages.

**AS AND FOR A SIXTH
AFFIRMATIVE DEFENSE:**

13. That the defendant acted reasonably considering the facts and circumstances herein and was confronted with a sudden condition that could not have been reasonably anticipated and which sudden condition was not caused by or contributed to by the defendant.

**AS AND FOR A SEVENTH
AFFIRMATIVE DEFENSE:**

14. Plaintiff's action is barred by §1276 of the Public Authority Law due to plaintiff's failure to comply with the procedural requirements of Public Authorities Law §1276.

**AS AND FOR AN EIGHTH SEPARATE AND
COMPLETE AFFIRMATIVE DEFENSE:**

15. That the causes of action set forth in the Complaint as against the answering defendant(s) are barred by the applicable statute of limitations.

AS AND FOR A NINTH AFFIRMATIVE DEFENSE:

16. There is another action pending between the same parties for the same cause(s) of action.

WHEREFORE, answering defendant demands judgment dismissing plaintiff's Complaint, together with costs and disbursements, or in the alternative, for judgment over and against plaintiff(s), above named, in any amount recovered by plaintiff, against answering defendant and/or to a determination of the respective degrees of culpable acts and for judgment over and against said plaintiff(s) in accordance therewith, together with the costs and disbursements hereof.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.,

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Index No.: 160000-2024

**NOTICE OF
EXAMINATION
BEFORE TRIAL**

PLEASE TAKE NOTICE, that pursuant to Article 31 of the Civil Practice Law and Rules, the testimony of plaintiff(s), as adverse parties, will be taken at the above courthouse located at 60 Centre Street, New York, New York 10007, on the 5th day of March 2025, at 10:00 o'clock in the forenoon of that day, on the following matters:

All the relevant facts and circumstances in connection with the accident, including negligence, comparative negligence, liability or damages.

That for the purposes authorized by Article 31 of the Civil Practice Law and Rules, the parties to be examined are required to produce at such examination all books, records, papers, leases, contracts, deeds, documents and all other evidence or things pertaining to the subject matter of the examination.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Index No.: 160000-2024

**DEMAND FOR VERIFIED
BILL OF PARTICULARS**

PLEASE TAKE NOTICE that you are hereby required to serve the following particulars of plaintiff(s) within twenty (20) days from the date of service hereof:

1. Set forth the full name of each plaintiff and any and all names that the plaintiff has ever been known by, including, but not limited to, a maiden name and/or alias.
2. Set forth the date, place of birth, and social security number of the plaintiff(s).
3. Set forth the address of the plaintiff(s) at the time of the accident and at the present time.
4. Set forth the exact date and time of day of the occurrence.
5. State the location of the accident/incident, in sufficient detail, to permit identification, including distances and directions from landmarks, and/or the direction in which each vehicle was proceeding.
6. Statements of all acts and omissions constituting the negligence claimed by plaintiff of each of the defendants named in the complaint.
7. State the manufacturer, model, year and color of each of the vehicles involved in the accident, stating the owners and operators thereof.
8. State what part of the respective vehicles came into contact.
9. Nature, location, extent and duration of each and every personal injury claimed, or sequelae, and a description of those injuries claimed to be permanent.
10. Set forth the name and addresses of all hospitals where the plaintiff was treated or confined as a result of the accident and state the length of time the plaintiff was treated or

confined in said hospital(s), the name of the hospital(s), the date(s) of admission(s) and date(s) of discharge following the accident.

11. Length of time, including dates of confinement, if any, plaintiff claims to have been confined to (a) bed, and/or (b) home.

12. State the length of time the plaintiff claims s/he was (a) totally disabled; (b) partially disabled.

13. State the following:

- (a). Length of time, if any, plaintiff was allegedly disabled and prevented from attending regular occupation;
- (b). Set forth nature of occupation
- (c). State name and address of employer at the time of the accident and at present, indicating whether or not plaintiff was self-employed;
- (d). State the exact date of cessation and resumption of employment after the alleged occurrence;
- (e). State the average weekly earnings at the time of the accident; and
- (f). Total amount, if any, claimed as lost earnings, future lost earnings and/or loss of or impairment of earning capacity, setting forth the method of computation used.

14. If the plaintiff was/is a student, state the name and address of the grade and school attended at the time of the accident, and at the present time, setting forth the length of time, if any, giving specific dates, that the plaintiff was incapacitated from attending said school.

15. Total amounts claimed as special damages for a). hospital expenses; b). x-rays; c). nurses' services; d). physicians' services; e) medical supplies; f). any other items of special damages claimed, indicating nature and amount.

16. Set forth all statutes, ordinances, codes, orders, rules, regulations and/or requirements of the federal, state, county, village, town or city governments, or of any and all of their departments, divisions, agencies and bureaus, or by and duly constituted professional society and/or organization, or by contract, agreement, duty or other obligation, which any party claims defendants violated and the manner in which same occurred.

17. If there is a claim for loss of services and/or loss of consortium, state with specificity the details of the services rendered, the period when they had been performed and the basis of your computations as to the value of said services.

18. If it is alleged the accident/incident occurred as the result of an alleged defective condition, describe the alleged defective condition/equipment/product.

19. In an action for personal injuries arising out of negligence in the use or operation of a motor vehicle, state in what respect plaintiff has sustained a serious injury, as defined in Section 5102(d) of the Insurance Law, or economic loss greater than basic economic loss, as defined in Section 5102(a) of the Insurance Law.

20. a). Was the vehicle in which plaintiff was an occupant equipped with (1) a lap seat belt; (2) a chest or shoulder belt; and b). At the time of the event, was plaintiff wearing the seat belt with which the vehicle was equipped.

Dated: Islip Terrace, New York
November 15, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JUSTIN SAPINI,

Index No.: 160000-2024

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,**DEFENDANTS' DEMAND
FOR DISCOVERY AND
INSPECTION**Defendants,
-----X

PLEASE TAKE NOTICE that you are hereby required to supply to the undersigned at the below listed address for discovery, inspection and copying, pursuant to CPLR Article 31, within twenty (20) days of the date of service herein, the following:

1. The complete name, address and telephone number of any person claimed to be an eyewitness or otherwise have material knowledge with regards to:
 - a) The occurrence(s) alleged in the complaint; or:
 - b) Any acts, omissions, defects or conditions which allegedly caused the occurrence set forth in the complaint; or
 - c) Any claim that actual notice of any condition, which is alleged to have caused or otherwise involved the occurrence set forth in the complaint, was given to the answering defendant(s) or any other person(s) and provide the date and manner that same occurred.
 - d) The nature and duration of any alleged condition which allegedly caused the occurrence set forth in the complaint; or
 - e) Any claim that prior written notice was given to answering defendants(s) or any other person(s) of the alleged defect, and please include the date, time and manner of such notification, and a true, full legible and complete copy of such written notification to be relied upon by any party herein.
 - f) Any oral statement made by or on behalf of the answering defendant(s) that may be used at trial or during any other proceeding herein, including, but not limited to, admissions declarations against interest, res gestae, contemporaneous statements or

prior inconsistent statements. Additionally, please identify who made such statements, when, where and the circumstances under which such statements were made, and the sum and substance of same; or

- g) Any facts bearing on the controversy and the issues of liability herein; or
- h) Any facts bearing on the issues of damages claimed herein.

2. A full, true, legible and complete copy of any and all statements made by or taken from any of the parties to this litigation, or their agents, servants and/or employees, whether written or recorded, in your possession, custody or control or presently in the possession or under the control of a party you represent, or any agent, servant, employee and/or principal, of you or the party you represent.

3. Set forth the complete name and address of any/all treating physicians and/or health care provider(s) plaintiff has treated with for the injuries alleged in this action, including but not limited to hospital, physicians, diagnostic test centers, physical therapists, etc., setting forth the approximate number of visits to each doctor and/or facility.

4. Set forth the complete name and address of any/all treating physicians and/or health care provider(s) plaintiff has treated with for prior and/or subsequent injuries to and/or affecting the same parts of the body, as the injuries alleged in this action, including but not limited to hospital, physicians, diagnostic test centers, physical therapists, etc., setting forth the approximate number of visits to each doctor and/or facility, and further:

a. Identify by venue, full case caption, index number, assigned judge and date of loss, of all prior and subsequent personal injury lawsuits instituted by plaintiff(s) or on the plaintiff's behalf.

b. Provide true and accurate copies of all pleadings, bill(s) of particulars, and deposition transcripts from all prior and subsequent personal injury lawsuits instituted by plaintiff(s) or on plaintiff's behalf.

c. Identify all prior and subsequent worker's compensation claims instituted by plaintiff(s) including date(s) of loss, worker's compensation board file number(s), worker's compensation carrier names and claim number(s), and whether the same is pending or is closed.

d. Identify all prior and subsequent disability claims instituted by plaintiff(s), including date(s) of loss, disability carrier names and claim number(s), and whether the same is pending or closed.

e. Identify all prior and subsequent social security disability claims instituted by plaintiff(s), including date(s) of loss, claim number(s), and whether the same is pending or closed.

f. Identify all prior and subsequent no-fault claim(s) instituted by plaintiff(s) for personal injuries, including date(s) of loss, claim number(s), the name and address of the no-fault carrier(s), and whether the same is pending or closed.

5. Within the time provided for herein and prior to the defendant(s) having to set up any independent medical examination, pursuant to 22 NYCRR 202.17, you are hereby required to provide copies of the narrative medical reports of those medical providers who have treated, consulted with, or examined the plaintiff, which shall include a recital of the injuries and conditions as to which testimony will be offered at trial, referring to and identifying those x-rays and technicians' reports which will be offered at the trial, including a description of the injuries, a diagnosis and a prognosis, and plaintiff is required to provide all such reports in existence even if plaintiff does not intend on calling the medical provider at the time of trial.

6. Executed written authorizations directed to the following, which must include the following information in accordance with the "Privacy Rule" pursuant to HIPAA Regulations:

- i. **A description of the information to be disclosed indicating that the disclosure is being requested for purposes of the defense of this lawsuit,**
- ii. **Complete name and address of the entity to release the disclosure,**
- iii. **Statement that said authorization is valid for the duration of the lawsuit,**
- iv. **Statement that the individual maintains the right to revoke the authorization in writing to the health care provider,**
- v. **Statement that the information used or disclosed pursuant to the authorization may be subject to re-disclosure by the recipient and will no longer be protected by federal or state law,**
- vi. **If said authorization is signed by a personal representative of the individual, a description of such representative's authority to sign for the individual.**

permitting the answering defendant(s) to obtain and make copies of the following:

- a) All hospital records;
- b) Diagnostic test reports and original duplicate films of all x-rays, MRI's, CAT Scans, or other diagnostic tests performed on plaintiff as a result of the occurrence complained of herein;
- c) A complete set of all records in the possession of any medical doctor or other health care provider who treated, examined or consulted with the plaintiff as a result of the occurrence complained of herein;
- d) All no-fault records;

- e) All employment records for 5 years prior to the occurrence herein, to date, and through the time of trial, contained the correct name and address for each such employer;
- f) All school or other vocational training records for 5 years prior to the date of the occurrence, to date, and continuing through the time of trial, containing the correct name and address for all such entities;
- g) Any collateral source which provides indemnity or benefits, in whole or in part, including, but not limited to, any type of insurance, social security, worker's compensation or employee benefit programs, including the correct name, address and claim number;
- h) If applicable, all worker's compensation records of the worker's compensation board, as well as any carrier(s) providing such compensation;
- i) If applicable, any autopsy report including all toxicological reports or other tests in connection therewith;
- j) The records of all physical therapists, or other providers of any relevant type of therapy, counseling or rehabilitation;
- k) Any property damage records, appraisals, repair bills, estimates or other documents relating thereto, including the correct name and address to obtain same;
- l) The records of any pharmacies which provided any medication or supplies related to the occurrence complained of, including the complete name and address;
- m) Income tax records or IRS form 4506 (a copy of the form can be supplied upon demand) along with a copy of two forms of identification for 5 years prior to the occurrence, to date, and through the time of trial;
- n) To the extent that plaintiff is claiming injuries, damages, lost earnings, lost earning capacity and/or an impairment of plaintiff's ability to pursue activities, interests, vocations or otherwise enjoy life as a result of the occurrences complained of, demand is hereby made that plaintiff identify any prior or subsequent accidents, injuries, illnesses or conditions which directly or indirectly affects or affected plaintiff's earnings capacity and/or ability to pursue activities, interests, vocations or otherwise enjoy life, and provide authorizations as demanded in items a-m above, for all such prior or subsequent accidents, injuries illnesses or conditions.

7. If any claims were filed or lawsuits were commenced as a result of any accidents, injuries, illnesses or conditions referred to in item #6(n) above, demand is hereby made that you identify same and provide authorizations to obtain the records of any entity or insurance company with whom the claim was filed, and the caption, index or docket number, and the Court where any such lawsuit was commenced, copies of any pleadings, discovery, medical reports or deposition transcripts stemming from any such lawsuits, and an authorization to obtain the non-privileged portions of the file of any attorney who handled same.

8. Exact duplicate reproductions of all photographs in your possession, custody or control, or in the possession or under the control of any party you represent, or the agent, servant, employee, and/or principal of either the scene or vicinity of the alleged occurrence, the instrumentalities involved or claimed to be involved therein, of any of the injuries or damages claimed herein, or otherwise to be used at trial or any proceedings herein.
9. If a wrongful death claim is involved, furnish a copy of the decedent's Death Certificate, Letters of Administration or Executorship, the Last Will and Testament, if any, and the Autopsy Report, if any and all toxicological reports and reports of all other tests in connection therewith, the Birth Certificate or Baptismal Certificate of plaintiff's decedent, the spouse and any and all dependents or distributes claiming damages herein.
10. Full, true, legible and complete copies of any accident reports or statements prepared or made in the regular course of business by any employee, agent or representative of any party to this action.
11. Provide copies of all medical bills or other documentation for which plaintiff claims special damages and all collateral source payment invoices or bills.
12. Disclose the Tax Identification Number (TIN) of plaintiff's attorney and/or any attorneys who name or firm will appear on any payment of settlement or judgment checks which may be issued on behalf of party demanding same herein.
13. Provide copies of any films, photographs, videotapes or audiotapes, including transcripts or memoranda thereof, including outtakes, involving any party to this litigation, or the officer, director, member, agent or employee of any party.
14. Pursuant to CPLR 3118, provide a verified statement setting forth the current post office address and residence of any party and/or any person who possessed a cause of action or defense asserted in this action which has been assigned.
15. Pursuant to CPLR 3101(f), disclose the existence and contents of any insurance agreement under which any person carrying on an insurance business may be liable to satisfy party or all of a judgment which may be entered in this action or to indemnify or reimburse for payments made to satisfy and such judgment, including, but not limited to, all primary, excess, umbrella or catastrophe coverage. Additionally, if the answering defendant(s) is named as an additional insured or is insured by such policy by definition, please disclose the existence of the fact.
16. To the extent that answering defendant(s) have appeared in this litigation after prior pleading or discovery has occurred, demand is hereby made that answering defendant(s) be provided with copies of all prior pleadings, discovery, deposition transcripts, medical records, notices to admit and responses to same, Court Orders, motion papers, correspondence, Notes of Issues, stipulations, releases or other documents, evidence or papers exchanged pursuant to CPLR 2103(e) or otherwise.

17. If any party has obtained any records, contracts, documents, accident/incident reports, statements, evidence, material or other information from answering defendant(s), outside of this litigation or through Freedom of Information Law Requests, application, voluntary requests or otherwise, demand is hereby made that said material be identified and copies provided.

18. Provide copies of all Notices of Claim, hearing transcripts conducted pursuant to the General Municipal Law, Public Authorities Law, regulations of the Department of Motor Vehicles or otherwise relating to the claim or occurrence herein, please provide copies of all pleadings related to same, or if a claim has been filed or pursued please identify same, and provide an authorization to obtain the records of said entity or insurer with whom said claim has been filed.

19. If any party has, or in the future does, pursue any type of Arbitration, including but not limited to, those relating to no-fault benefits or other collateral source benefits, relating directly or indirectly to the claim or occurrence herein or the damages allegedly stemming from same, demand is hereby made that the answering defendant(s) be apprised of same and the appropriate authorization(s) be supplied.

20. Is the plaintiff a Medicare recipient or does plaintiff expect to become one within the next thirty (30) months.

- a. If plaintiff is a Medicare recipient, set forth the HICN/Medicare claim number;
- b. Has the subject occurrence and alleged injuries been reported to Medicare?;
- c. Set forth the date it was reported;
- d. If the matter has been reported to Medicare, has plaintiff received a response letter from Medicare?

PLEASE TAKE FURTHER NOTICE, that pursuant to CPLR 3101(h) the foregoing demand is a continuing demand. In the event any of the above items occur or are obtained and service of this demand, or service of a response hereto, they are to be furnished to the undersigned forthwith.

PLEASE TAKE FURTHER NOTICE, that the answering defendant(s) reserves the right to request a sworn reply and that your failure to comply herewith will result in an application by the undersigned to the Court for the appropriate relief including, but not limited to, striking of pleadings or preclusion of testimony or evidence at the time of trial.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888
(516) 634-0345

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Index No.: 160000-2024

**DEMAND FOR
SOCIAL MEDIA
INFORMATION**

PLEASE TAKE NOTICE, that pursuant to §3120 of the CPLR you are hereby required to furnish to the undersigned authorizations to obtain full access to and copies of all of plaintiff's current and historical social media accounts including but not limited to Facebook, Twitter, and LinkedIn accounts for the period of (1) one year prior to the date of loss, in this matter to the present. (See Forman v. Henkin 134 A.D.3d 529, 30 NY3d 659 (Court of Appeals 2018)).

1. Authorizations shall permit the release of complete copies of said accounts including but not limited to: all records, information, photographs, videos, comments, messages and posting on all social media accounts including but not limited to Facebook, Twitter, and LinkedIn accounts.

2. Authorizations shall include the name, username, screen name and email account used in creating each and every account including but not limited to Facebook, Twitter, and LinkedIn account.

3. Demand is hereby made that the parties preserve all electronic material including but limited to all social media accounts including, but not limited to, Facebook, Twitter posting, and LinkedIn as well as all other electronic material relative to the subject incident, claims and defenses.

4. The authorizations shall allow access to the requested records and shall be directed to the following:

LinkedIn Corporation
Attn: Legal Department
2029 Stierlin Court
Mountain View, CA 94043

Facebook
Attn: Security Department
1601 South California Avenue
Palo Alto, CA 943404

Twitter, Inc.
c/o Trust & Safety
795 Folsom Street, Suite 600
San Francisco, CA 94107

(Authorization must specify the friend ID for the account, the password associated with the account, the user's zip code, and the birth date)

If plaintiff was not a registered user of any social media accounts including but not limited to Facebook, Twitter, and/or LinkedIn during the requested time period, third-party defendant demands a statement from plaintiff under oath, to that effect.

PLEASE TAKE FURTHER NOTICE, that upon failure to produce the aforesaid items at the time and place required in this Notice, a motion will be made to the Court for the appropriate relief with costs.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Index No.: 160000-2024

**DEMAND PURSUANT
TO CPLR §3101(d)**

PLEASE TAKE NOTICE, that pursuant to CPLR §3101(d), defendant(s) demand(s) that all parties provide the following information at the office of ZAKLUKIEWICZ, PUZO & MORRISSEY, LLP., within thirty (30) days after an expert or experts are retained and at least thirty (30) days prior to trial:

- (a). The name of all expert witnesses each party will call to testify at trial;
- (b). The qualifications of each expert in the field he or she will be offered as an expert witness;
- (c). The substance of the facts and opinions on which the expert is expected to testify;
- (d). The grounds forming the basis for the experts' opinion;
- (e). The dates of all reports provided by the expert to the attorney.

If any party does not respond to this request in a timely fashion, this defendant will object at trial to the testimony of any such expert if the above information is not provided.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Index No.: 160000-2024

**NOTICE PURSUANT
TO CPLR §2103(5)**

PLEASE TAKE NOTICE, that pursuant to CPLR 2103(5), the undersigned herein
will not accept service of papers via electronic means.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Index No.: 160000-2024

**DEMAND PURSUANT
TO CPLR §3017**

PLEASE TAKE NOTICE, that plaintiff is hereby required to set forth the amount of damages which plaintiff deems him/herself entitled in this matter within fifteen (15) days of the date hereof.

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Index No.: 160000-2024

Plaintiff,

-against-

**DEMAND FOR TRIAL
AUTHORIZATIONS**

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants,
-----X

Pursuant to CPLR 3122(a), you are hereby required to provide the answering party herein with the following information:

No later than sixty (60) days prior to trial of this action, serve upon the attorneys for defendant(s) newly signed HIPAA compliant authorizations for all hospital and medical records and such other records, including x-rays and technicians' reports(s) as to be referred to and identified in the statement of the plaintiff(s)' physicians and additional OCA authorizations allowing the defendant(s) to interview plaintiff's treating physicians pursuant to Arons v. Jutkovitz, 9 N.Y. 3d 393 (2007).

Dated: Islip Terrace, New York
December 2, 2024

Yours, etc.

MILBER, MAKRIS, PLOUISAIDIS
& SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
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File No.: 1805CS-28142M

TO:

STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

CERTIFICATION

Regarding the DEMAND FOR BILL OF PARTICULARS, NOTICE FOR DISCOVERY AND INSPECTION, 3101(d) DEMAND, NOTICE OF EXAMINATION BEFORE TRIAL, NOTICE PURSUANT TO CPLR 2103(5), and DEMAND PURSUANT TO §3017, DEMAND FOR TRIAL AUTHORIZATIONS served herewith, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies to the best of my personal knowledge, information and belief, that the within contentions, and the presentation of same, are not frivolous as defined in 22 NYCRR 130-1.1(c).

Dated: Islip Terrace, New York
December 2, 2024



WILLIAM E. MORRISSEY, JR.

ATTORNEY'S VERIFICATION

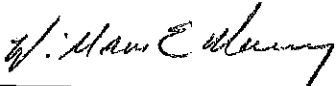
I, WILLIAM E. MORRISSEY, JR. am an attorney admitted to practice in the courts of New York, and I am the attorney of record for defendants, ANTHONY F. FERRARA and METRO-NORTH COMMUTER RAILROAD, in this action; that the foregoing **ANSWER**, is true to the knowledge of deponent except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.

The reason I make this affirmation instead of defendants is that said defendant is not within the County of Suffolk where deponent has his office.

The sources of affiant's information and belief are the investigation of the case, reports therein and interviews with the parties.

I affirm that the foregoing statements are true under penalties of perjury.

Dated: Islip Terrace, New York
December 2, 2024



WILLIAM E. MORRISSEY, JR.